

DSHEA /Dietary Supplement (1)

DSHEA Dietary Supplement Labeling and Supplement Facts

Title: Dietary Supplement Labeling and Supplement Facts

Jurisdiction: International

Category: Standards

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §403(q)(5)(F); 21 U.S.C. §343(q)(5)(F); implemented through 21 CFR §101.36

Plain English Summary:

Dietary supplements must provide specific information about their dietary ingredients on the label. For an Ayurvedic supplement, this generally means the label must identify the dietary ingredients and their quantities, with the required information presented through the Supplement Facts panel. FDA regulations provide the detailed format and presentation requirements.

The Exact Legal Text:

21 U.S.C. §343(q)(5)(F) Dietary supplement nutrition information:

A dietary supplement product (including a food to which section 350 of this title applies) shall comply with the requirements of subparagraphs (1) and (2) in a manner which is appropriate for the product and which is specified in regulations of the Secretary which shall provide that

(i) nutrition information shall first list those dietary ingredients that are present in the product in a significant amount and for which a recommendation for daily consumption has been established by the Secretary, except that a dietary ingredient shall not be required to be listed if it is not present in a significant amount, and shall list any other dietary ingredient present and identified as having no such recommendation;

(ii) the listing of dietary ingredients shall include the quantity of each such ingredient (or of a proprietary blend of such ingredients) per serving;

(iii) the listing of dietary ingredients may include the source of a dietary ingredient; and

(iv) the nutrition information shall immediately precede the ingredient information required under subclause (i), except that no ingredient identified pursuant to subclause (i) shall be required to be identified a second time.

FDA's implementing regulation, 21 CFR §101.36, establishes the Supplement Facts panel and specifies information such as serving size, servings per container, dietary ingredients, and quantities.

Keywords/Triggers:

Supplement Facts, dietary supplement label, Ayurvedic supplement labeling, serving size, dietary ingredient quantity, proprietary blend, 21 USC 343(q), 21 CFR 101.36

DSHEA Misbranding of Dietary Supplements

Title: Misbranding Requirements for Dietary Supplements

Jurisdiction: International

Category: Standards

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §403(s); 21 U.S.C. §343(s)

Plain English Summary:

A dietary supplement is misbranded if its label fails to provide required information about the dietary ingredients, quantities, identity, or other legally required information. For Ayurvedic supplements, this is particularly important because herbal or botanical ingredients must be properly identified and the label must accurately represent what the product contains.

The Exact Legal Text:

21 U.S.C. §343(s) Dietary supplements:

If

(1) it is a dietary supplement; and

(2)(A) the label or labeling of the supplement fails to list

(i) the name of each ingredient of the supplement that is described in section 321(ff) of this title; and

(ii)(I) the quantity of each such ingredient; or

(II) with respect to a proprietary blend of such ingredients, the total quantity of all ingredients in the blend;

(B) the label or labeling of the dietary supplement fails to identify the product by using the term 'dietary supplement', which term may be modified with the name of such an ingredient;

(C) the supplement contains an ingredient described in section 321(ff)(1)(C) of this title, and the label or labeling of the supplement fails to identify any part of the plant from which the ingredient is derived;

(D) the supplement

(i) is covered by the specifications of an official compendium;

(ii) is represented as conforming to the specifications of an official compendium; and

(iii) fails to so conform; or

(E) the supplement

(i) is not covered by the specifications of an official compendium; and

(ii)(I) fails to have the identity and strength that the supplement is represented to have; or

(II) fails to meet the quality (including tablet or capsule disintegration), purity, or compositional specifications, based on validated assay or other appropriate methods, that the supplement is represented to meet.”

A dietary supplement shall not be deemed misbranded solely because its label or labeling contains directions or conditions of use or warnings.

Keywords/Triggers:

misbranded supplement, Ayurvedic supplement labeling, herbal ingredient identification, botanical plant part, supplement quality, supplement purity, 21 USC 343(s), dietary supplement label

DSHEA Adulteration and Safety of Dietary Supplements

Title: Safety Requirements for Dietary Supplements

Jurisdiction: International

Category: Standards

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §402(f); 21 U.S.C. §342(f)

Plain English Summary:

A dietary supplement is adulterated if it presents a significant or unreasonable risk of illness or injury under the conditions of use recommended or suggested in its labeling. This is especially important for Ayurvedic products because the safety of an herbal or botanical ingredient must be considered in relation to how the finished supplement is actually recommended to be used.

The Exact Legal Text:

21 U.S.C. §342(f)(1):

If it is a dietary supplement or contains a dietary ingredient that

(A) presents a significant or unreasonable risk of illness or injury under

(i) conditions of use recommended or suggested in labeling, or

(ii) if no conditions of use are suggested or recommended in the labeling, under ordinary conditions of use;

(B) is a new dietary ingredient for which there is inadequate information to provide reasonable assurance that such ingredient does not present a significant or unreasonable risk of illness or injury;

(C) the Secretary declares to pose an imminent hazard to public health or safety; or

(D) is or contains a dietary ingredient that renders it adulterated under paragraph (a)(1) under the conditions of use recommended or suggested in the labeling.

Keywords/Triggers:

adulterated dietary supplement, supplement safety, Ayurvedic herb safety, significant risk, unreasonable risk, herbal supplement safety, 21 USC 342(f), dietary ingredient safety